

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Nathan Vu

Department N15

Hearing Date and Time: September 25, 2023 @ 08:30 AM

TENTATIVE RULINGS: The court will endeavor to post tentative rulings on this website by 5:00 p.m. on the day before the hearing. However, ongoing proceedings may prevent posting by that time or the court may have no tentative ruling on a matter. If no tentative ruling is posted, please do not call the courtroom to inquire if or when one will be posted.

Once a tentative ruling has been posted, the court will not entertain requests for continuance and no additional papers will be considered.

SUBMITTING: The court will hear oral argument regarding law and motion matters on the hearing date and time stated above. If you wish to submit on the tentative ruling and do not intend to appear at the hearing, please inform opposing counsel and contact the court clerk at (657) 622-5615.

If all parties submit on the tentative ruling, then no hearing will be held and the tentative ruling shall become the final ruling. If all parties do not submit, the court will call the matter and hear oral argument on the hearing date.

APPEARANCES: Parties and counsel may appear at the law and motion hearing via Zoom or in-person. Persons appearing in-person shall come to Department N15 at the North Justice Center, 1275 N. Berkeley Avenue, Fullerton, CA 92832.

Persons appearing remotely must check-in online through the court's website at <https://www.occourts.org/media-relations/civil.html>. Participants should click on the gold button entitled "Click Here to Appear/Check-In for Civil Limited/Unlimited/Complex Remote Hearings" and then click on the button entitled "Department N15 Judge Nathan Vu".

Members of the public may attend the Law and Motion calendar in-person or they may attend remotely by contacting the court clerk at (657) 622-5615.

All persons appearing remotely must abide by all applicable laws and rules. **This includes obtaining, testing the functionality of, and learning how to use the Zoom application and all necessary audio and video equipment prior to the remote hearing.** More information is available at <https://www.occourts.org/media-relations/civil.html>.

COURT REPORTERS: Court reporters employed by the court are NOT normally provided for law and motion matters in civil courtrooms. If a party desires a record of a law and motion proceeding, it is the party's responsibility to arrange for a privately-retained court reporter, who may appear in-person or remotely. Parties must comply with the Court's policy on the use of privately-retained court reporters, available at https://www.occourts.org/media/pdf/Private_Retained_Court_Reporter_Policy.pdf.

1	Doe vs. Roe Counselor 30-2022-01291594	<u>Demurrer</u> Defendant Huntington Beach City School District's Demurrer to Plaintiff's First Amended Complaint is OVERRULED as to the 1st Cause of Action, and SUSTAINED with 21 days leave to amend, as to the 3rd, 5th, 6th, and 7th Causes of Action. If Plaintiff John Doe does not amend the First Amended Complaint within the period in which leave to amend is granted, Defendant Huntington Beach City School District shall file an answer or other pleading in response to the First Amended Complaint within 10 days of the expiration of the period to amend. (See Cal. Rules of Ct. rule 3.1320(j).) Defendant Huntington Beach City School District (Defendant School District) demurs to the First Amended Complaint (FAC) filed by Plaintiff John Doe. <u>Standard for Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) Because a demurrer tests only the sufficiency of the pleading, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . . [and] consider[s] matters which may be judicially noticed." (<i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591, citation omitted.) Questions of fact cannot be decided on demurrer. (<i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Thus, in ruling on a demurrer to a complaint, a court must accept as true all allegations of fact contained in the complaint, (see <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318), and will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice, (see <i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.)
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		Although courts should take a liberal view of inartfully drawn pleadings, (see Code Civ. Proc., § 452), it remains essential that a pleading set forth the actionable facts relied upon with sufficient precision to inform the responding party of the matters that the pleading party is alleging, and what remedies or relief is being sought, (see <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413). Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (<i>Schmid v. City and County of San Francisco</i> (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).) <u>1st Cause of Action (Negligence)</u> Defendant School District contends that the 1st Cause of Action for negligence is duplicative of the 2nd Cause of action for negligent supervision/training/hiring/retention. (See <i>Palm Springs Villas II Homeowners Assn., Inc. v. Parth</i> (2016) 248 Cal.App.4th 268, 290 [defendant may demur on basis that causes of action are duplicative].) A review of the FAC reveals that there is some overlap between 1st and 2nd Causes of Action. For example, the 1st Cause of Action includes allegations that Defendant School District was negligent in “failing to adequately hire, supervise and/or retain ROE COUNSELOR” and “failing to adequately monitor and supervise ROE COUNSELOR and/or stopping ROE COUNSELOR from committing wrongful sexual acts with minors including Plaintiff.” (See FAC, ¶¶ 39, 41.) In addition, the FAC alleges that Defendant School District was negligent by allowing Defendant Roe Counselor to come into contact with minors, by failing to investigate or otherwise confirm or deny facts about Defendant Roe Counselor, and by failing to report child abuse to a child protection agency pursuant to the requirements of Section 11166 of the Penal Code section 11166. (See FAC, ¶¶ 39, 41-50.) These are all allegations that Defendant School District failed to properly supervise Defendant Roe Counselor and are duplicative of the allegations of the 2nd Cause of Action. (See FAC, ¶¶ 60-68 [allegations of 2nd Cause of Action based on violation of Penal Code section 11166].)
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		However, the FAC also alleges that Defendant School District was negligent because it held out Defendant Roe Counselor "to the public, Plaintiff and Plaintiff's parents to be a highly qualified psychologist, mentor, and advisor . . . " (FAC, ¶ 9.) The FAC further alleges that Defendant School District was negligent: by failing to tell or concealing from Plaintiff, his parents, guardians . . . that ROE COUNSELOR was or may have been sexually harassing and abusing minors; by failing to tell or concealing from Plaintiff's parents, guardians . . . that Plaintiff was or may have been sexually harassed and abused after ROE SCHOOL and ROES 1 through 100, and each of them, knew or should have known that ROE COUNSELOR may have sexually harassed, and abused Plaintiff or others, thereby enabling Plaintiff to continue to be endangered and sexually harassed, and abused, and/or by holding out ROE COUNSELOR to Plaintiff and to his parents as being in good standing and trustworthy. Defendants, cloaked within the facade of normalcy their conduct, contact and actions with Plaintiff and/or disguised the nature of the sexual harassment and abuse and contact. (FAC, ¶ 39.) This alleged conduct is separate and distinct from the allegations that Defendant School District was negligent in supervising, training, hiring, and retaining Plaintiff, as pleaded in the 2nd Cause of Action. "A demurrer must dispose of an entire cause of action to be sustained." (<i>Fremont Indemnity Co. v. Fremont General Corp.</i> (2007) 148 Cal.App.4th 97, 119.) "Thus, a court must overrule a demurrer to a cause of action if it is based on at least one viable theory of liability." (<i>Thompson v. Spitzer</i> (2023) 90 Cal.App.5th 436, 452.) Here, at least one theory of liability in the 1st Cause of Action is not duplicative of the 2nd Cause of Action, so that the court must overrule the demurrer. <u>3rd Cause of Action (Sexual Battery), 5th Cause of Action (Sexual Harassment: Civil Code § 51.9).</u>
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		1240 ["Only rarely should a demurrer to an initial complaint be sustained without leave to amend."].) Defendant School District asserts that the court should not grant leave to amend in light of Plaintiff's concession as to the to the 3rd, 5th, 6th, and 7th Causes of Action. However, Plaintiff did not concede that these claims could not be amended. Further, this is the first time that the court has sustained a demurrer to these causes of action. Therefore, the court will grant leave to amend as to the to the 3rd, 5th, 6th, and 7th Causes of Action. Defendant School District shall give notice of this ruling.
2	Escamilla vs. Suchard 30-2022-01282888	<u>Motion for Leave to Amend</u> Defendant Talmor Suchard's Motion for Leave to File First Amended Answer is GRANTED. Defendant Talmor Suchard shall file and serve the First Amended Answer by September 27, 2023. Defendant Talmor Suchard moves for leave to file a First Amended Answer in this action. <u>Standard for Leave to Amend</u> The Civil Procedure Code provides that: The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.

		(Code Civ. Proc., § 473, subd. (a)(1).) Leave to amend should be granted liberally at all stages of the proceedings in order to accomplish substantial justice for both parties and to resolve cases on their merits. (See <i>Hirsa v. Superior Court</i> (1981) 118 Cal.App.3d 486, 488-489; <i>IMO Development Corp. v. Dow Corning</i> (1982) 135 Cal.App.3d 451, 461.) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend" (<i>Morgan v. Superior Court</i> (1959) 172 Cal.App.2d 527, 530, citations and quotations omitted.) As the Court of Appeal has explained: [T]rial courts should be guided by two general principles: (1) whether facts or legal theories are being changed and (2) whether the opposing party will be prejudiced by the proposed amendment. Frequently, each principle represents a different side of the same coin: If new facts are being alleged, prejudice may easily result because of the inability of the other party to investigate the validity of the factual allegations while engaged in trial or to call rebuttal witnesses. If the same set of facts supports merely a different theory – for example, an easement as opposed to a fee – no prejudice can result. (<i>City of Stanton v. Cox</i> (1989) 207 Cal.App.3d 1557, 1563.) With respect to the first requirement, "[t]he basic rule applicable to amendments to conform to proof is that the amended pleading must be based upon the same general set of facts as those upon which the cause of action or defense as originally pleaded was grounded." (<i>Union Bank v. Wendland</i> (1976) 54 Cal.App.3d 393, 400-401.) In other words, "[t]he power to permit amendments is interpreted very liberally as long as the plaintiff does not attempt to state facts which give rise to a wholly distinct and different legal obligation against the defendant." (<i>Herrera v. Superior Court</i> (1984) 158 Cal.App.3d 255, 259.) Prejudice that may support denying amendment includes "delay in trial, loss of critical evidence, or added costs of preparation." (<i>Solit v. Tokai Bank,</i>
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		<i>Ltd. New York Branch</i> (1999) 68 Cal.App.4th 1435, 1448.) However, it is "an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (<i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048.) It is also an abuse of discretion to refuse amendment where that "results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense." (<i>Morgan v. Superior Court, supra</i>, 172 Cal.App.2d at p. 530.) This is true even if leave to amend is sought as late as the time of trial or even during trial. (See <i>Higgins v. Del Faro</i> (1981) 123 Cal.App.3d 558, 564-565; <i>Rainer v. Community Memorial Hosp.</i> (1971) 18 Cal.App.3d 240, 251-256.) Thus, "[i]n the furtherance of justice, trial courts may allow amendments to pleadings and if necessary, postpone trial." (<i>Honig v. Financial Corp. of America</i> (1992) 6 Cal.App.4th 960, 965.) Defendant's current counsel explains that, once he was retained as counsel, it became clear the answer filed by Defendant, who was then self-represented, was deficient. The original answer stated five separate facts, but it did not assert any affirmative defenses. The proposed First Amended Answer to Complaint, attached as Exhibit 1 to the Motion for Leave to File First Amended Answer, remedies this deficiency. Defendant's counsel was diligent in filing the instant motion. Defendant's counsel filed the Substitution of Attorney on June 15, 2023. Defendant's counsel then attempted to contact Plaintiff to meet and confer on this issue but was unsuccessful. On June 27, 2023, Defendant's counsel filed the instant motion. Further, the First Amended Answer consists only of a general denial and affirmative defenses. It does not seek to change Defendant's position on the underlying facts of the case. In addition, if the court were to deny the motion, Defendant would be unable to assert potentially meritorious defenses and there is no showing that Plaintiff would be prejudiced by this amendment. Plaintiff was served with the instant motion but has not filed an opposition. The failure to address
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		or oppose an issue in a motion constitutes a waiver on that issue. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288; see also <i>Wright v. Fireman's Fund Ins. Companies</i> (1992) 11 Cal.App.4th 998, 1011 ["it is clear that a defendant may waive the right to raise an issue on appeal by failing to raise the issue in the pleadings or in opposition to a . . . motion"].) Defendant shall give notice of this ruling.
3	Goodfield vs. Frahm 30-2019-01050047	<u>Motion for Sanctions</u> Defendants Daniel A. Frahm's and Claire Frahm's Motion for Sanctions Under Code of Civil Procedure 128.7 is DENIED. All requests for sanctions are DENIED. Defendants Daniel A. Frahm and Claire Frahm (Frahm Defendants) move for sanctions pursuant to Civil Procedure Code section 128.7 against Plaintiffs Bruce Goodfield and Kerry Goodfield. <u>Standard for Sanctions</u> By submitting to the court a pleading, petition, written notice of motion, or other similar paper, an attorney or a party not represented by counsel represents that: (1) [The document] is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation. (2) The claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law. (3) The allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery. (4) The denials of factual contentions are warranted on the evidence or, if specifically

		so identified, are reasonably based on a lack of information or belief. (See Code Civ. Proc., § 128.7, subd. (b).) The Civil Procedure Code authorizes the court to impose monetary sanctions on an attorney or an unrepresented party that violates any one of these representations. ((See Code Civ. Proc., § 128.7, subd. (c); <i>Eichenbaum v. Alon</i> (2003) 106 Cal App 4th 967, 976.)) Thus, a court has discretion to impose sanctions if it concludes a pleading was filed for an improper purpose or was without merit, either legally or factually. (See <i>Bucur v. Ahmad</i> (2016) 244 Cal.App.4th 175, 189-190.) A claim is factually frivolous if it is "not well grounded in fact" and is legally frivolous if it is "not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law." (<i>Ibid.</i>) In either case, to obtain sanctions, the moving party must show the party's conduct in asserting the claim was objectively unreasonable. (<i>Ibid.</i>) A claim is objectively unreasonable if "any reasonable attorney would agree that [it] is totally and completely without merit." (<i>Ibid.</i>) At the same time, the moving party need not show subjective bad faith. (<i>In re Marriage of Reese & Guy</i> (1999) 73 Cal. App. 4th 1214, 1221.) The Court of Appeal has cautioned that "section 128.7 sanctions should be 'made with restraint', and are not mandatory even if a claim is frivolous." (<i>Peake v. Underwood</i> (2014) 227 Cal.App.4th 428, 448, quoting <i>Schlaifer Nance & Co. v. Estate of Warhol</i> (2d Cir. 1999) 194 F.3d 323, 334.) <u>Violation of Section 128.7(b)</u> Frahm Defendants claim that in light of the discovery of geotechnical reports commissioned by Plaintiffs, the testimony of witnesses, and the fact that Plaintiffs have demolished their pool, Plaintiffs' claims are frivolous and no objectively reasonable attorney would maintain this action.
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	However, The Court of Appeal has rejected the Frahm Defendants' argument that the evidence in this case shows that the action is frivolous. (See ROA #198.) Frahm Defendants argue that evidence, including evidence collected after the appeal, shows that Plaintiffs cannot prove that the pool defects in question were unobservable to them, that Defendants knew about the pool defects, and that Defendants knew that the Plaintiffs could not discover the pool defects through diligent attention. The Court of Appeal concluded that "what facts were known to the buyer [Plaintiffs] in a particular case and what facts were within the buyer's diligent attention and observation are factual matters to be resolved by the trier of fact. [Citations.] And, here, there was conflicting evidence. Buyers [Plaintiffs] stated they had no actual knowledge of the more extensive pool repairs or structural problems due to slope creep, and Kerry stated none of the undisclosed conditions could be seen during her agent visual inspection or at any other time. This is arguably corroborated by sellers' agent's visual inspection which did not note any observation of the undisclosed pool repairs or geotechnical engineering issues." (ROA #198 at p. 12.) Further, the Court of Appeal discussed what Frahm Defendants knew and whether they should have disclosed that information to Plaintiffs. (See <i>id.</i> at pp. 9-10.) The Court of Appeal found Frahm Defendants did not deny knowledge of several defects and repairs. (See <i>id.</i> at p. 9 ["[Plaintiffs] contend there was more that should have been disclosed. They argue sellers were obligated to tell them about (1) the more extensive work previously performed on the pool, including installation of a footing, saw cutting and insertion of steel rebar, and replastering on more than one occasion; (2) the pool shell rotation and slope creep; and (3) the then existing pool leak. Sellers do not deny knowledge of these additional matters, but instead argue they were not obligated to disclose them."].) Finally, the Court of Appeal determined that there was a disputed issue of material fact as to whether Frahm Defendants knew that that
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	the undisclosed facts were within the ability of Plaintiffs to discover: Turning to sellers' knowledge, whether sellers knew the undisclosed facts were not within the diligent attention of buyers is a factual issue on which there was conflicting evidence. On one hand, sellers noted they twice gave buyers the contact information for the company who performed the pool crack repairs and stated they believed buyers would contact that company if they were interested in the repair information. On the other hand, there was evidence not all the undisclosed information would have been discovered by contacting the pool crack repair company. Sellers possessed documents showing, at minimum, the pool replastering was performed by a different company and the pool shell rotation and slope creep issues were identified and known to companies other than the one for which sellers gave buyers contact information. (<i>Id.</i> at p. 13). Frahm Defendants now assert that they have more evidence than at the time of the appeal that contradicts Plaintiffs' version of events (e.g., two more reports and testimony from Plaintiffs' agent/broker about what was known to Plaintiffs or what knowledge could be imputed to Plaintiffs). However, the additional evidence does not result in there being no disputed issues of fact. The new evidence may make Frahm Defendants' arguments stronger, but the issues remain and need to be decided by the factfinder at trial. (See <i>Gerbosi v. Gaims, Weil, W. & Epstein, LLP</i> (2011) 193 Cal. App. 4th 435, 450 ["When a motion has partial merit, it is not 'totally and completely' without merit."].) In addition, Plaintiffs assert several reasons why the demotion of the pool was not spoliation of evidence. Thus, that is an issue that needs to be decided by the court on a motion regarding violation of the discovery statutes or laws requiring preservation of evidence. However, regardless of the outcome of a motion regarding spoliation of evidence, the fact that
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		Plaintiffs regraded the original pool excavation, in and of itself, does not lead to the conclusion that Plaintiffs claims are “not well grounded in fact” or are “not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law.” Even where there is spoliation of evidence, that does not change the underlying facts or law of a case. Plaintiffs have failed to establish that there is no factual or legal basis for Plaintiffs’ claims and the court must deny the motion. <u>Motion for Sanctions Brought for Improper Purpose</u> Plaintiffs request attorneys’ fees and expenses for opposing the Motion for Sanctions pursuant to Civil Procedure Code section 128.7(c)(1). However, that provision only grants the court authority to award sanctions where a party successfully brings a motion under Section 128.7. (See Code Civ. Proc., § 128.7, subd. (c) [granting court authority to order sanctions where moving party shows subdivision (b) has been violated, not where non-moving party shows that subdivision (b) has not been violated].) However, Section 128.7(h) states that “[a] motion for sanctions brought by a party or a party’s attorney primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation, shall itself be subject to a motion for sanctions.” (Code Civ. Proc., § 128.7, subd. (h).) (fn.1) (fn.1) Plaintiffs cite to <i>Musaelian v Adams</i> (2011) 197 Cal.App.4th 1251, 1258, but that case primarily discusses Federal Rule of Civil Procedure Rule 11 and, in any case, concludes that sanctions may be awarded to a party opposing a motion for sanctions on a basis similar to Section 128.7(h). (See <i>id.</i> at p. 1258 [“Thus, although Rule 11 does not explicitly require a separate finding of violation of Rule 11 to award attorney fees incurred in opposing a Rule 11 motion, it appears that such fees are normally not awarded if the Rule 11 motion was not frivolous, unfounded, filed for an improper purpose, or otherwise unreasonable.”].) In this case, Plaintiffs have presented no evidence that the Motion for Sanctions was brought for improper purpose. It is true that Plaintiffs have
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		presented evidence that the Motion for Sanctions was frivolous (because the Court of Appeal already rejected Frahm Defendants' primary arguments). However, Section 128.7(h) does not state that a motion for sanctions is itself subject to sanctions for frivolousness. The court therefore denies all requests for sanctions. Plaintiffs shall give notice of this ruling.
4	Hood Container Corporation vs. Riviera Beverages, LLC 30-2021-01211057	<u>Motion for Entry of Judgment</u> Plaintiff Hood Container Corporation's Motion for Entry of Judgment Based Upon Stipulated Settlement Agreement is GRANTED. Judgment shall be ENTERED in favor of Plaintiff Hood Container Corporation and against Defendant Riviera Beverages, LLC in the amount of \$10,000 plus reasonable attorney's fees of \$1,625 and reasonable costs. Plaintiff Hood Container Corporation shall prepare a proposed judgment and serve it on Defendant Riviera Beverages, LLC and submit it to the court pursuant to Rules of Court Rule 3.1590(h). The Court finds good cause to allow Plaintiff 20 days from the date of this ruling to prepare, serve, and submit the proposed judgment. Plaintiff Hood Container Corporation moves for an order to enter judgment against Defendant Riviera Beverages, LLC pursuant to the parties' stipulated settlement agreement. <u>Standard for Entry of Judgment Pursuant to Settlement Agreement</u> Civil Procedure Code section 664.6 provides: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (Code Civ. Proc., § 664.6, subd. (a).) Thus, "Code of Civil Procedure section 664.6 provides a summary procedure to enforce a settlement agreement by entering judgment

		pursuant to the terms of the settlement.” (<i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182.) It empowers the court presiding over the underlying case to assess whether the material terms of the settlement were reasonably certain and whether the parties expressly acknowledged that they understood and agreed to be bound by those terms. (<i>In re Marriage of Assemi</i> (1994) 7 Cal.4th 896, 911.) In doing this, the trial court may determine disputed factual issues that have arisen regarding the settlement agreement. (See <i>Fiore v. Alvord</i> (1985) 182 Cal.App.3d 561, 566.) The trial court also may consider oral testimony or declarations. (<i>Corkland v. Boscoe</i> (1984) 156 Cal.App.3d 989, 994.) “If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement.” (<i>Hines v. Lukes</i>, 167 Cal.App.4th at 1182.) <u>Settlement Agreement and Breach</u> Plaintiff has presented evidence that the parties stipulated to a settlement agreement, the terms of which were memorialized in the Settlement and Mutual Release Agreement (Settlement Agreement). (See Declaration of Andrew M. Purdy in Supp. of Pltf.’s Mot. for Entry of J. Based Upon Stip. Settlement Agreement (Purdy Decl.), Exh. 1.) The Settlement Agreement provides that its terms would be enforceable through Code of Civil Procedure section 664.6. (See <i>id.</i>, Exh. 1 at p. 2, ¶ 2) Plaintiff also has established that Defendant Riviera Beverages, LLC breached the Settlement Agreement by failing to make the requirement payment. (See Purdy Decl., ¶ 4, Exh. 3.) Defendant has not filed an opposition and, thus, does not dispute the existence of the Settlement Agreement, the terms of the Settlement Agreement, or that Defendant has breached the agreement. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes
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		waiver of that issue]; see also <i>Wright v. Fireman's Fund Ins. Companies</i> (1992) 11 Cal.App.4th 998, 1011 ["it is clear that a defendant may waive the right to raise an issue on appeal by failing to raise the issue in the pleadings or in opposition to a . . . motion"].) Therefore, the court "may enter judgment pursuant to the terms of the settlement," (Code Civ. Proc., § 664.06, subd. (a)), and the motion will be granted. <u>Attorney's Fees</u> Civil Code section 1717(a) states that "[i]n any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs." (Civil Code, § 1717, subd. (a).) Here, the Settlement Agreement provides for an award of attorney's incurred to enforce the agreement. (See Purdy Decl., ¶ 2, Exh. 1 at p. 6, ¶ 15.) Plaintiff has presented evidence that it has incurred attorney's fees of \$1,625, which the court finds to be reasonable. (See Purdy Decl., ¶ 6.) Plaintiff shall give notice of this ruling.
5	Hughes vs. Hughes 30-2022-01239731	<u>Motion for Discovery of Peace Officer Personnel Records</u> Plaintiff Albert Hughes III's Motion for Discovery of Peace Officer Personnel Records GRANTED in part and DENIED in part. The Los Angeles County Sheriff's Department is ORDERED, through its custodian of records, to produce to the court in Department N15 Defendant Albert Hughes Jr.'s work schedule from the period of September 14, 2004 to September 21, 2004, within 15 days of service of the notice of ruling. (See <i>People v. Mooc</i> (2001) 26 Cal.4th 1216, 1228-1229.)

		The custodian of records need not produce an entire personnel file if it is not all relevant, and may withhold documents that are clearly irrelevant to Defendant Albert Hughes Jr.'s work schedule from the period of September 14, 2004 to September 21, 2004. (See <i>People v. Mooc, supra</i>, 27 Cal.4th at p. 1229-1230.) However, if the custodian of record has any doubt whether a particular document is relevant, the custodian of record is ORDERED to produce said document. (See <i>People v. Mooc, supra</i>, 27 Cal.4th at p. 1229.) The custodian of record is ORDERED to appear on October 26, 2023, at 2:30 p.m. in Department N15, and shall be prepared to state on the record and under oath "what other documents (or category of documents) not presented to the court were included in the complete personnel record, and why those were deemed irrelevant or otherwise nonresponsive" to Plaintiff Albert Hughes III's Motion for Discovery of Peace Officer Personnel Records. (See <i>People v. Mooc, supra</i>, 27 Cal.4th at p. 1229; <i>People v. Fuiava</i> (2012) 53 Cal.4th 622, 647; <i>People v. Guevara</i> (2007) 148 Cal.App.4th 62, 68-69; <i>People v. White</i> (2011) 191 Cal.App.4th 1333, 1338-1339.) The custodian of record may have present at the <i>in camera</i> review "any other persons as the [custodian or records] is willing to have present." (Evid. Code, § 915, subd. (b).) The custodian of record is ORDERED to arrange for a court reporter to be present on October 26, 2023, at 1:30 p.m., in Department N15 in order to transcribe the proceedings, or to inform the court at the earliest possible date that the custodian of record is unable to make said arrangements. (See <i>People v. Mooc, supra</i>, 27 Cal.4th at p. 1229.) The court shall conduct an <i>in camera</i> review of the documents produced to the court and shall order disclosure to Plaintiff of any records produced that are not excluded. The court also shall make a record of the documents the court examined sufficient to permit future appellate review and shall issue a ruling stating what documents are to be produced to Plaintiff Albert Hughes III. (See <i>People v. Mooc,</i>
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		<i>supra</i>, 27 Cal.4th at p. 1229; <i>People v. White, supra</i>, 191 Cal.App.4th at p. 1338.) The court ORDERS that the transcript of the proceedings and all copies of documents produced to the court shall be sealed. (See <i>People v. Mooc, supra</i>, 27 Cal.4th at p. 1229.) The court ORDERS that any peace officer personnel records disclosed to or discoverable by Albert Hughes III shall “not be used for any purpose other than a court proceeding pursuant to applicable law.” (Evid. Code, § 1045, subd. (e).) Plaintiff Albert Hughes III moves for an order directing the Los Angeles County Sheriff’s Department (LASD) to make available to Plaintiff for examination, inspection, and copying “all documents concerning bailiff Albert Hughes Jr. (‘Defendant’) as defined by Penal Code section 832.8; records maintained pursuant to Penal Code section 832.5, subdivision (b); and any other records, documents, or items pertaining to the defendant Albert Hughes Jr.” (Amend. Mot. for Discovery of Peace Officer Personnel Records at p. 2:12-16.) <u>Standard for Discovery of Peace Officer Personnel Records (<i>Pitchess</i> Motion)</u> Pursuant to Penal Code section 832.7, peace officer “personnel records and records maintained by any state or local agency pursuant to Section 832.5, or information obtained from these records, are confidential and shall not be disclosed in any criminal or civil proceeding except by discovery pursuant to Sections 1043 and 1046 of the Evidence Code.” (Penal Code, § 832.7, subd. (a); see <i>Davis v. City of Sacramento</i> (1994) 24 Cal.App.4th 393, 399-400 [these provisions “take precedence over the general discovery rules outlined in the Code of Civil Procedure”].) Penal Code section 832.8 defines “personnel records” as: [A]ny file maintained under that individual’s name by his or her employing agency and containing records relating to any of the following: (a) Personal data, including marital status, family members, educational
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		and employment history, home addresses, or similar information. (b) Medical history. (c) Election of employee benefits. (d) Employee advancement, appraisal, or discipline. (e) Complaints, or investigations or complaints, concerning an event or transaction in which he or she participated, or which he or she perceived, and pertaining to the manner in which he or she performed his or her duties. (f) Any other information the disclosure of which would constitute an unwarranted invasion of personal privacy. (Penal Code, § 832.8; see <i>Ibarra v. Superior Court</i> (2013) 217 Cal.App.4th 695, 702 [“[P]ersonnel records include only the types of information enumerated in section 832.8.”].) When discovery or disclosure is sought of such peace officer personnel records, “the party seeking the discovery or disclosure shall file a written motion with the appropriate court or administrative body upon written notice to the governmental agency which has custody and control of the records.” (Evid. Code, § 1043, subd. (a).) This motion is commonly referred to as a <i>Pitchess</i> motion. (See <i>Pitchess v. Superior Court</i> (1974) 11 Cal.3d 531.) The <i>Pitchess</i> motion must include the following: (1) Identification of the proceeding in which discovery or disclosure is sought, the party seeking discovery or disclosure, the peace or custodial officer whose records are sought, the governmental agency which has custody and control of the records, and the time and place at which the motion for discovery or disclosure shall be heard. (2) A description of the type of records or
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		information sought. (3) Affidavits showing good cause for the discovery or disclosure sought, setting forth the materiality thereof to the subject matter involved in the pending litigation and stating upon reasonable belief that the governmental agency identified has the records or information from the records. (Evid. Code, § 1043, subd. (b).) The party requesting the discovery or disclosure also must give written notice of the motion to the governmental agency that has custody and control of the records and the agency must immediately notify the individual whose records are being sought. (Evid. Code, § 1043, subds. (a), (c).) The motion involves a two-step process. (<i>Haggerty v. Superior Court</i> (2004) 117 Cal.App.4th 1079, 1085; <i>California Highway Patrol v. Superior Court</i> (2000) 84 Cal.App.4th 1010, 1019-1020.) First, the moving party must meet the requirements of Evidence Code section 1043, and in particular include "[a]ffidavits showing good cause for the discovery . . . , setting forth the materiality thereof to the subject matter involved in the pending litigation and stating upon reasonable belief that the governmental agency identified has the records or information from the records." (<i>City of Santa Cruz v. Municipal Court</i> (1989) 49 Cal.3d 74, 84; <i>Warrick v. Superior Court</i> (2005) 35 Cal.4th 1011, 1019; see Evid. Code, § 1043, subd. (b)(3).) To show the requested information is material, the affidavits should set forth "a 'specific factual scenario' which provide[s] sufficient information to allow the trial court to assess whether the records [are] material 'to the subject matter involved in the pending litigation'." (<i>City of San Jose v. Superior Court</i> (1998) 67 Cal.App.4th 1135, 1146, quoting Evid. Code., § 1043., subd. (b)(3).) In other words, the moving party must articulate with some specificity how the personnel records being sought will support a claim or defense, or how it will impeach the officer's version of events. (See <i>Garcia v. Superior Court</i> (2007) 42 Cal.4th 63, 71.)
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		"This good cause showing is a 'relatively low threshold for discovery.' Assertions in the affidavits 'may be on information and belief and need not be based on personal knowledge, but the information sought must be requested with sufficient specificity to preclude the possibility of a [party] simply casting about for any helpful information.'" (<i>Garcia v. Superior Court, supra</i>, 42 Cal.4th at p. 70, quoting <i>City of Santa Cruz v. Municipal Court, supra</i>, 49 Cal.3d at p. 83, and <i>People v. Mooc</i> (2001) 26 Cal.4th 1216, 1226.) Second, if the trial court concludes that the party has met its initial burden of showing good cause, the court shall examine the information in chambers, pursuant to Evidence Code section 1045, to determine if there is information relevant to the subject matter in the pending litigation. (<i>Haggerty v. Superior Court, supra</i>, 117 Cal.App.4th at p. 1086.) Section 1045(b)(1) requires the court to exclude discovery in a criminal case of "the conclusions of any officer investigating a [citizen's] complaint filed pursuant to Section 832.5 of the Penal Code." (Evid. Code, § 1045, subd. (b)(1); see <i>City of San Jose v. Superior Court</i> (1993) 5 Cal.4th 47, 56 ["[T]he statutory scheme reveals a legislative intent to allow disclosure of the outcome of an investigation, i.e., the discipline imposed, without also requiring disclosure of how or why the investigating body reached that outcome."].) While Section 1045(b)(1) does not apply in a civil case such as this one, Section 1045(b)(2) still requires the court to consider whether the records "are so remote as to make disclosure of little or no practical benefit." (See Evid. Code., § 1045, subd. (b)(2).) Thus, the court must determine, on a case-by-case basis, whether the "thought processes of, and factual inferences and deductions drawn by, an officer investigating a complaint, concerning such matters as the credibility of witnesses or the significance, strength, or lack of evidence" should be produced. (See <i>Haggerty v. Superior Court, supra</i>, 117 Cal.App.4th at pp.1088-1089, quoting <i>City of San Jose v. Superior Court, supra</i>, 5 Cal.4th at p. 55.) In <i>Haggerty v. Superior Court</i>, the Court of Appeal ruled, in a civil case, that the conclusions of an officer investigating a complaint against another peace officer should be excluded from production
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		pursuant to Evidence Code section 1045(b)(2). (<i>Haggerty v. Superior Court, supra</i>, 117 Cal.App.4th at pp. 1088-1089.) However, the Court of Appeal also held that the remainder of the report investigating the complaint could be produced and that it was not sufficient merely to produce only “the names, addresses and telephone numbers of the prior complainants/witnesses.” (<i>Id.</i> at pp. 1089-1091.) If the issue in the litigation “concerns the policies or pattern of conduct of the employing agency, the court shall consider whether the information sought may be obtained from other records maintained by the employing agency in the regular course of agency business which would not necessitate the disclosure of individual personnel records.” (Evid. Code, § 1045, subd. (c).) In addition, the court “ay make any order which justice requires to protect the officer or agency from unnecessary annoyance, embarrassment or oppression.” (Evid. Code, § 1045, subd. (d).) “If those statutory provisions do not prohibit disclosure, ‘the trial court should then disclose to the defendant such information [that] is relevant to the subject matter involved in the pending litigation.” (<i>Rezek v. Superior Court</i> (2012) 206 Cal.App.4th 633, 640, quoting <i>People v. Mooc, supra</i>, 26 Cal.4th at p. 1226, and Evid. Code., § 1045, subd. (a).) The trial court has broad discretion in ruling on <i>Pitchess</i> motions and the standard of review is abuse of discretion. (<i>Haggerty v. Superior Court, supra</i>, 117 Cal.App.4th at p. 1086.) As the Supreme Court has explained: The statutory scheme thus carefully balances two directly conflicting interests: the peace officer’s just claim to confidentiality, and the criminal defendant’s equally compelling interest in all information pertinent to his defense. The relatively relaxed standards for a showing of good cause under [Evidence Code] section 1043 . . . insure the production for inspection of all potentially relevant documents. The in camera review procedure and disclosure guidelines set forth in [Evidence Code] section 1045 guarantee, in turn, a balancing of the
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		officer's privacy interests against the defendant's need for disclosure (<i>City of Santa Cruz v. Municipal Court, supra</i>, 49 Cal.3d at p. 84.) <u>Timeliness of Opposition</u> LASD filed its Opposition to Plaintiff's Motion for Peace Officer Records and Files (Pitchess) on August 23, 2023. (See ROA #93.) This was only three court days before the hearing on the motion was initially set on August 28, 2023. However, at the hearing, the parties agreed to meet and confer further on the motion and the court continued the hearing to September 25, 2023. (See ROA #98.) While the parties indicated in their most recent joint statement that they have not been able to resolve their issues, they did agree that Plaintiff was timely served with the opposition. (See ROA #108.) Thus, Plaintiff was afforded sufficient time to file a reply and did, in fact, file a reply in this case. (See ROA #102.) Thus, Plaintiff has suffered no prejudice from the late-filed opposition of LASD and the court will consider the opposition and the reply. <u>Allegations of the Complaint</u> The First Amended Complaint (FAC) asserts a causes of action for wrongful death; breach of fiduciary duty; fraud, deceive, misrepresentation; concealment; conversion; breach of contract; intentional infliction of emotional distress; and negligence. These claims are based on the allegations that on September 17, 2023, Defendant Albert Hughes, Jr. murdered Serette Mitchell-Hughes, Plaintiff's mother; that Defendant subsequently deprived Plaintiff of his rightful share of the estate of Serette Mitchell-Hughes; and that Defendant failed to repay Plaintiff \$2,000 that Plaintiff had loaned him for bail. (See FAC, ¶¶ 7, 10-12, 13, 19-73.) <u>Peace Officer Personnel Records</u> Plaintiff's motion seeks "all documents concerning bailiff Albert Hughes Jr. ('Defendant') as defined
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		by Penal Code section 832.8; records maintained pursuant to Penal Code section 832.5, subdivision (b); and any other records, documents, or items pertaining to the defendant Albert Hughes Jr." (Amend. Mot. for Discovery of Peace Officer Personnel Records at p. 2:12-16.) Even considering the relatively low threshold required to show good cause, this request is overbroad. As LASD notes, Plaintiff fails to show how or why Defendant Albert Hughes, Jr.'s entire personnel file would be relevant to or would support a claim or defense in this case. At oral argument, Plaintiff conceded that he had no idea what was in Defendant's LASD personnel file. Thus, Plaintiff's request appears to be nothing more than a fishing expedition to search for evidence to support his claims, which is not allowed. (See <i>City of Santa Cruz v. Municipal Court</i> (1989) 49 Cal.3d 74, 85 ["The information sought [in a Pitchess motion] must, however, be 'requested with adequate specificity to preclude the possibility that defendant is engaging in a fishing expedition.'"], quoting <i>Pitchess v. Superior Court, supra</i>, 11 Cal.3d at p. 538.) The instant motion also specifies 7 categories of personnel records. Although Plaintiff makes it clear that he seeks "all records concerning bailiff Albert Hughes Jr. ('Defendant') . . . including but not limited to" the 7 categories, (Amend. Mot. for Discovery of Peace Officer Personnel Records at p. 2:16-17), the court will consider each category as a separate request. The motion requests the following records, documents, or items pertaining to Defendant: 1) Work Schedule during the year of 2004, or, in the alternative, during the month of September 2004; 2) Lack of credibility/falsifying police reports; 3) Prior acts involving moral turpitude; 4) Illegal detentions, arrests, searches, and seizures; 5) Complaints of the use of excessive force or failure to intervene therein;
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		6) Any allegations/investigations of sexual harassment or sexual assault; and 7) Suspensions, demotions, transfers of work location. All of these appear to be overbroad. For example, Plaintiff fails to explain how Defendant's work schedule for all of 2004 (or even for all of September 2004) has any relationship to the allegation that Defendant murdered Serrette Mitchell-Hughes on September 17, 2004. From the allegations of the FAC, it is clear that Plaintiff is focused on Defendant's whereabouts only on September 17, 2004. (See FAC, ¶ 2 [alleging that given Defendant's work schedule, he should have been home at time of Serrette Mitchell-Hughes' alleged murder].) In fact, the FAC contains no allegations as to Defendant's whereabouts or actions on any specific date other than September 17, 2004. At best, Defendant's work schedule for the week surrounding September 17, 2004, may have some relevance to Plaintiff's claims. Therefore, the court will order that LASD produce these records for an <i>in camera</i> review by the court. As for the remainder of the categories, Plaintiff fails to show how they are material to this case. In essence, Plaintiff is seeking evidence that Defendant was a bad employee or a bad person, without connecting such evidence to the claims asserted in the FAC. In addition, Plaintiff's declaration supplies no basis for believing that Defendant's personnel file contains records of lack of credibility/falsifying police reports; acts of moral turpitude; illegal detentions, arrests, searches, and seizures; acts of excessive force or failure to intervene in acts of excessive force; sexual harassment or sexual assault; or suspensions, demotions, or transfers. In short, Plaintiff has failed to present a plausible factual foundation as to how such records would support Plaintiff's claims or that such records are in the possession of LASD. Plaintiff contends that all prior misconduct by Defendant constitutes relevant circumstantial
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		evidence that Defendant committed the wrongful acts alleged in the FAC. However, such “prior bad acts” evidence is usually inadmissible under the Evidence Code. (See Evid. Code, § 352; see also Evid. Code, § 1102.) Plaintiff also argues that the records will tend to prove that Defendant had a certain character, habit, or custom and that he acted in conformity with this character, habit or custom in committing the wrongful acts. However, Plaintiff provides no evidence that Defendant had any such character, habit, or custom or that the alleged wrongful acts were done in conformity with said character, habit, or custom. Finally, Plaintiff asserts that the records could be used to impeach Defendant. However, Plaintiff presents no factual scenario in which credibility will be an issue in this case or in which Plaintiff would need to impeach Defendant. In fact, Plaintiff has already taken the default of Defendant. (See ROA #31). Thus, Defendant has already conceded the truth of all the allegations of the complaint. The court will order that LASD produce to the court the categories of records for which good cause has been shown. The court will then review the records <i>in camera</i>. In its <i>in camera</i> review, the court will apply Evidence Code section 1045(a)-(d) to determine if any of the records produced by the LASD should be excluded. The court will then order disclosure to Plaintiff of any records produced that are not excluded, subject to the protective order that the records disclosed or discovered may not be used for any purpose other than a court proceeding pursuant to Evidence Code section 1045(e). Defendant shall give notice of this ruling.
6	Jones vs. Fairchild 30-2023-01313310	<u>Order to Show Cause re: Dismissal for Failure to Appear and Case Management Conference</u> The court will hold the hearing on these matters after the hearing on the Special Motion to Strike (Anti-SLAPP).

		<u>Special Motion to Strike (Anti-SLAPP)</u> Defendants Michelle Fairchild’s, Bob Wein’s, and Premiere Choice R.E. Inc.’s Special Motion to Strike Plaintiff’s Complaint Pursuant to C.C.P. § 425.16 – Anti-SLAPP Motion is DENIED. Defendants Michelle Fairchild, Bob Wein, and Premier Choice R.E. Inc. specially move to strike the Complaint of Plaintiff Anne Marie Jones pursuant to Civil Procedure Code section 425.16. <u>Standard for Special Motion to Strike (Anti-SLAPP)</u> Civil Procedure Code section 425.16(b) provides that: “A cause of action against a person arising from any act of that person in furtherance of the person’s right of petition or free speech under the United States or California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the Court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.” (Code Civ. Proc. § 425.16, subd. (b).) In ruling on a special motion to strike under Section 425.16, the court must follow a two-step process. (<i>Baral v. Schnitt</i> (2016) 1 Cal.5th 376, 384-385.) First, the court determines if the party moving to strike a cause of action has shown that the cause of action arises from an act in furtherance of the moving party’s right of petition or free speech. (<i>Ibid.</i>) If the moving party makes the showing required in the first step, the court then determines whether the non-moving party has demonstrated a probability of prevailing on the claim. (<i>Navellier v. Sletten</i> (2002) 29 Cal.4th 82, 88.) “The anti-SLAPP procedures are designed to shield a defendant’s constitutionally protected conduct from the undue burden of frivolous litigation.” (<i>Baral v. Schnitt, supra</i>, 1 Cal.5th 376 at p. 393.) <u>Protected Activity</u> In the first step, the defendant must make a “threshold showing” that the challenged claims arise from protected activity. (<i>Rusheen v. Cohen</i> (2006) 37 Cal.4th 1048, 1056.) “[T]he moving defendant bears the burden of identifying all allegations of protected activity, and the claims
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		for relief supported by them. When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage." (<i>Baral v. Schnitt</i>, <i>supra</i>, 1 Cal.5th 376 at p. 396.) "A defendant meets the burden of showing that a plaintiff's action arises from a protected activity by showing that the acts underlying the plaintiff's cause of action fall within one of the four categories of conduct described in section 425.16, subdivision (e)." (<i>Siam v. Kizilbash</i> (2005) 130 Cal.App.4th 1563, 1569.) These categories are: (1) statements made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law; (2) statements made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law; (3) statements made in a place open to the public or a public forum in connection with an issue of public interest; or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest. (Code Civ. Proc., § 425.16, subds. (e)(1)-(4).) <u>Statements Made Before A Legislative, Executive, or Judicial Proceeding</u> The Complaint alleges that Defendant Michelle Fairchild (Defendant Fairchild) sent a cease-and-desist letter (Cease-and-Desist Letter) to Plaintiff and her company, AM4Inc. dba In the Park Manufactured Homes (In the Park). (Compl., ¶¶ 9, 12, Exh. 1.) Attached to the Cease-and-Desist Letter are 21 statements signed by various owners and sellers (Statements). (Compl., ¶ 13, Exh. 2.) Plaintiff alleges that the Cease-and-Desist Letters and Statements contain false statements that Plaintiff and In the Park do not hold an active real estate license, were improperly soliciting offers and attempting to advertise Defendant Premiere Choice R.E. Inc.'s (Defendant Premiere) exclusive listings, and were engaging in false and misleading business practices by inflating the listing prices. (See Compl., ¶¶ 14-22.)
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		Here, it is undisputed the Cease-and-Desist Letter and Statements were not communications “before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law.” (Code Civ. Proc., § 425.16, subd. (e)(1).) They were only sent to private individuals and were never presented in any governmental proceedings. <u>Statements Made in Connection with an Issue Under Consideration or Review by a Legislative, Executive, or Judicial Body</u> Pre-litigation communications sent in anticipation of litigation contemplated in good faith and under serious consideration qualify constitutes protected activity under the Anti-SLAPP statute. (See <i>CKE Restaurants, Inc. v. Moore</i> (2008) 159 Cal.App.4th 262, 271 [statements made in statutory intent-to-sue notice constituted protected activity]; <i>Comstock v. Aber</i> (2012) 212 Cal.App.4th 931, 944-945 [statements made to human resources manager constituted protected activity because they were necessary to address commonly used affirmative defense in sexual harassment case].) However, Defendants fail show that litigation was contemplated in good faith and under serious consideration. The Cease-and-Desist Letter and Statements contain no mention of legal action and Defendants have initiated no litigation. The Cease-and-Desist Letter and Statements are similar to debt collection efforts, that have been found not to be protected activity. (See <i>A.F. Brown Electrical Contractor, Inc. v. Rhino Electric Supply, Inc.</i> (2006) 137 Cal.App.4th 1118, 1127-1128.) In addition, the Complaint alleges that Defendants distributed the Cease-and-Desist Letter and Statements not only to Plaintiff but also to third parties, misleading those third parties to believe Plaintiff is an unethical or disreputable person. (See Compl., ¶¶ 23-27, 43-44, 58, 66.) Specifically, the Complaint pleads that Defendant Fairchild used the statements to distribute to third-party clients false information that Plaintiff had engaged in unethical conduct. The Complaint also alleges that Defendant Fairchild distributed the Cease-and-Desist Letter containing untrue accusations to four identified industry professionals – real estate broker Defendant Bob Wein, real estate agent Joshua Lukasiewicz, real
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		estate agent Kevin Fairchild, and attorney Neil Cacali. Defendants do not present evidence that the distribution of the Cease-and-Desist Letter and Statements <i>to third-parties</i> (not to Plaintiff) constituted prelitigation communications sent in anticipation of litigation. Defendants fail to explain why sending the allegedly false statements to clients and other real estate professionals was a necessary part of the prelitigation process. Thus, even assuming that the Cease-and-Desist Letter and Statements could be considered prelitigation communications, only the act of sending them to Plaintiff would be protected. However, Defendant Fairchild's conduct in sending the documents is only incidental or collateral to Plaintiff's claims. The principal thrust or gravamen of Plaintiff's claims is that Defendants, by sending the Cease-and-Desist Letter and Statements to third parties, defamed the Plaintiff, placed her in a false light, and caused her emotional distress. (See Compl., ¶¶ 43-44, 48-49, 58-59, 66-67.) "A claim arises from protected activity when that activity underlies or forms the basis for the claim." (<i>Park v. Board of Trustees of California State University</i> (2017) 2 Cal.5th 1057, 1062.) As the Supreme Court has explained: "[T]he defendant's act underlying the plaintiff's cause of action must <i>itself</i> have been an act in furtherance of the right of petition or free speech." (<i>City of Cotati v. Cashman</i> (2002) 29 Cal.4th 69, 78, italics original.) Here, Plaintiff's claims arise out of the distribution of the Cease-and-Desist Letter and Statements to third parties and not to Plaintiff herself. Plaintiff can only be defamed or be placed in a false light by the publication of false information to third-parties. (See Compl., ¶¶ 37-38, 55-56.) Further, Plaintiff does not allege in her Intentional Infliction of Emotional Distress claim that her receipt of the Cease-and-Desist Letter and Statements caused her emotional distress. Rather, the Complaint asserts that the emotional distress arose from the fact that the Cease-and-Desist Letter and Statements were sent to third-parties. (See Compl., ¶¶ 66-67.)
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		For example, Plaintiff attributes her emotional distress to "distribution of false statements demonstrating Plaintiff to be a disreputable business person," "paranoia over gossip spreading and of what will become of her business and license," and "concern[] for her business". (Compl., ¶ 68.) These problems could only arise from the distribution of the Cease-and-Desist Letter and Statements to third-parties and would not have arisen if the documents were only sent to Plaintiff. "[T]here is a difference between allegations that supply the elements of a claim and allegations of incidental background. 'Allegations of protected activity that merely provide context, without supporting a claim for recovery, cannot be stricken under the anti-SLAPP statute.'" (<i>Ratcliff v. The Roman Catholic Archbishop of Los Angeles</i> (2022) 79 Cal.App.5th 982, 1003, citation omitted, quoting <i>Baral v. Schnitt</i> (2016) 1 Cal.5th 376, 394.) Here, the allegations that the Cease-and-Desist Letter and Statements were sent to Plaintiff were only incidental background in the Complaint. They do not support and are not necessary for Plaintiff's claims for recovery and cannot be stricken under the Section 425.16. <u>Statements Made in A Place Open to the Public or A Public Forum in Connection With An Issue of Public Interest</u> In this case, the Cease-and-Desist Letters and Statements were private communications sent to third-party clients and real estate professionals. There is no evidence that they were "made in a place open to the public or a public forum. (Code Civ. Proc., s 425.16, subd. (e)(3).) In addition, for the reasons explained below, there is no evidence that the Cease-and-Desist Letters and Statements related to an issue of public interest. To the contrary, the documents related to private sales that impacted only the third-party buyers and sellers and real estate professionals that received the documents. <u>Other Conduct in Furtherance of the Exercise of the Constitutional Right to Petition or Free Speech</u>
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		<u>in Connection With a Public Issue or an Issue of Public Interest</u> Section 425.16(e)(4), which is referred to as the catchall provision, applies to private communications concerning issues of public interest. (See <i>Hailstone v. Martinez</i> (2008) 169 Cal.App.4th 728, 736.) Courts use a two-part test to determine whether the catchall provision applies to challenged activity. First, the court must decide “what ‘public issue or [] issue of public interest’ the speech in question implicates — a question we answer by looking to the content of the speech.” (<i>FilmOn.com Inc. v. DoubleVerify Inc.</i> (2019) 7 Cal.5th 133, 149.) Second, the court examines the “functional relationship . . . between the speech and the public conversation about some matter of public interest.” (<i>Id.</i> at pp. 149-150.) The second element includes determining if the speaker “participated in, or furthered, the discourse that makes an issue one of public interest.” (<i>Id.</i> at pp. 151.) A public issue includes “conduct that could directly affect a large number of people beyond the direct participants” and a “topic of widespread, public interest.” (<i>Rivero v. American Federation of State, County and Municipal Employees, AFL-CIO</i> (2003) 105 Cal.App.4th 913, 924.) An example would be statements related to an election or political campaign is an issue of public interest. (See <i>Rosenaur v. Scherer</i> (2001) 88 Cal.App.4th 260, 273-274 [anti-SLAPP “applies to actions arising from statements made in political campaigns”].) Consumer protection information that “affects a large number of persons . . . generally is viewed as information concerning a matter of public interest.” (<i>Wilbanks v. Wolk</i> (2004) 121 Cal.App.4th 883, 899.) In <i>Wilbanks v. Wolk</i>, the Court of Appeal noted the statements at issue “were not simply a report of one broker’s business practices, of interest only to that broker and to those who had been affected by those practices[, . . . but] were a warning not to use plaintiffs’ [brokerage] services. In the context of information ostensibly provided to aid consumers choosing among brokers, the statements, therefore, were
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		directly connected to an issue of public concern.” (<i>Id.</i> at p. 900.) Even where some actions of a defendant are protected as being related to a public issue of issue of public interest, not all actions of the defendant will be protected. In <i>All One God Faith, Inc. v. Organic & Sustainable Industry Standards, Inc.</i> (2010) 183 Cal.App.4th 1186, a cosmetic manufacturer sought to enjoin a cosmetics trade association from certifying as “organic” any products that did not meet the standards of the USDA. (<i>Id.</i> at p. 1192.) The Court of Appeal reasoned that even if the act of <i>formulating</i> a proposed industry “organic” standard constituted an exercise of free speech rights on a matter of public concern, the certification of products as “organic” promoted sales of the products; thus, the certification did not contribute to the ongoing public debate regarding the definition of the term “organic” and was not protected. (<i>Id.</i> at p. 1203.) “[T]here should be some degree of closeness between the challenged statements and the asserted public interest [and] the focus of the speaker’s conduct should be the public interest rather than a mere effort ‘to gather ammunition for another round of [private] controversy’” (<i>Weinberg v. Feisel</i> (2003) 110 Cal.App.4th 1122, 1132-1133, citations omitted, quoting <i>Connick v. Myers</i> (1983) 461 U.S. 138, 148.) Here, Defendants fail to show a public issue or issue of public interest implicated by Defendant Fairchild’s alleged communications to the Third-Party Clients and the Third-Party Industry Professionals. Unlike the situation in <i>Wilbanks v. Wolk</i>, where the defendant had publicly posted consumer protection information on a website purporting to provide such consumer information, Defendants here concede the alleged communications by Defendant Fairchild made privately and only to a specified group of persons. Even if the court assumed the communications constituted consumer protection information, Defendants do not show they could or did affect a large number of people beyond the direct participants. The communications were a report of a single competitor’s business practices, of interest only to that competitor and those affected by her
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		purported practices. (See <i>FilmOn.com Inc. v. DoubleVerify Inc.</i>, <i>supra</i>, 7 Cal.5th at p. 153-154 [concluding that private commercial speech between parties that is used for commercial purposes only and that “never entered the public sphere” did not qualify for protection]; <i>Murray v. Tran</i> (2020) 55 Cal.App.5th 10, 34 [statements regarding doctor’s competence made to a private group, which were not designed to be made public and were not to be disclosed to affected patients, did not meet the <i>FilmOn.com</i> criteria].) In short, the Cease-and-Desist Letter and Statements appear to be an effort to gather ammunition for another round of a private controversy rather than an attempt to exercise rights to petition or free speech. (See <i>Weinberg v. Feisel</i>, <i>supra</i>, 110 Cal.App.4th at pp. 1132-1133.) Thus, the statements in question were not made in furtherance of the exercise of the right to petition or free speech relating to a public issue or an issue of public interest. Defendants fail to show that the challenged claims arise from protected activity. Thus, the court need not proceed to the second step of the anti-SLAPP analysis and must deny the motion. Plaintiff shall give notice of this ruling.
7	Kameli vs. English 30-2023-01304346	<u>Motion to Compel Discovery</u> Pursuant to the Notice of Withdrawal of Motion to Compel Further Responses to Form Interrogatories filed September 18, 2023, (ROA #68), this matter is taken OFF CALENDAR.
8	Lowther vs. Pavilion Park Senior 1 Housing Partners 30-2022-01267301	<u>Motions to Compel Discovery</u> Defendant Pavilion Park Senior 1 Housing Partners’ Motion to Compel Plaintiff to Respond to Defendant Pavilion Park Senior 1 Housing Partners’s Form Interrogatories – General, Set One is GRANTED. Defendant Pavilion Park Senior 1 Housing Partners’ Motion to Compel Plaintiff to Respond to Defendant’s Special Interrogatories, Set One is GRANTED.

		Defendant Pavilion Park Senior 1 Housing Partners' Motion to Compel Plaintiff to Respond to Defendant's Request for Production of Documents, Set One is GRANTED. Plaintiff James Lowther is ORDERED to serve full, complete, and verified responses to: Form Interrogatories – General, Set One; Special Interrogatories, Set One; and Request for Production of Documents, Set One. without objections within 30 days of service of the notice of ruling. Plaintiff James Lowther is ORDERED to pay to Defendant Pavilion Park Senior 1 Housing Partners' sanctions in the amount of \$1,830 (5.5 hours x \$300 per hour in reasonable attorney's fees and \$180 in motion filing fees) within 30 days of service of the notice of ruling. Defendant Pavilion Park Senior 1 Housing Partners moves to compel Plaintiff James Lowther to serve responses to Defendant's Form Interrogatories – General, Set One; Special Interrogatories, Set One; and Request for Production of Documents, Set One. <u>Standard to Compel Responses</u> When a party properly propounds interrogatories and the party receiving the interrogatories fails to respond, "[t]he party propounding the interrogatories may move for an order compelling response to the interrogatories." (Code Civ. Proc., § 2030.290, subd. (b).) In addition, when a party properly propounds requests for production and the party receiving the requests fails to respond, "[t]he party making the demand may move for an order compelling response to the demand." (Code Civ. Proc., § 2031.300, subd. (b).) When the party receiving the discovery requests fails to respond, the propounding party is not required to file a meet and confer declaration prior to filing its motion to compel, and there is no time limit for the propounding party to file its motion. (<i>Sinaiko Healthcare Consulting, Inc. v. Pacific</i>
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		<i>Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 404.) Further, “[t]he party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product” (Code Civ. Proc., § 2030.290, subd. (a).) Finally, “[t]he party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product” (Code Civ. Proc., § 2031.300, subd. (a).) Here, Defendant has submitted evidence that it properly served Form Interrogatories – General, Set One; Special Interrogatories, Set One; and Request for Production of Documents, Set One. (See Amend. Decl. of Steven E. Bolanos in Supp. of Def.’s Mot. to Compel Pltf.’s Responses to Form Interrogatories – General, Set One, ¶¶ 2-4, Exhs. A-B; Amend. Decl. of Steven E. Bolanos in Supp. of Def.’s Mot. to Compel Pltf.’s Responses to Special Interrogatories, Set One, ¶¶ 2-4, Exhs. A-B; Decl. of Steven E. Bolanos in Supp. of Def.’s Mot. to Compel Pltf.’s Responses to Req. for Prod. of Documents, Set One, ¶¶ 2-4, Exhs. A-B.) Defendant also showed that Plaintiff has not served responses to any of these discovery requests, although the time to do so has passed. (<i>Ibid.</i>, ¶¶ 5-6.) Despite being served with the instant motions at two different mailing addresses, Plaintiff has not filed an opposition to any of the motions. Thus, Plaintiff has waived any arguments and the court must grant motions. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see also <i>Wright v. Fireman’s Fund Ins. Companies</i> (1992) 11 Cal.App.4th 998, 1011 [“it is clear that a defendant may waive the right to raise an issue on appeal by failing to raise the issue in the pleadings or in opposition to a . . . motion”].) <u>Sanctions</u>
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		The Civil Procedure Code requires the court to impose monetary sanctions against a party, person, or attorney who unsuccessfully makes or opposes a motion to compel "unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c).) California Rules of Court rule 3.1348(a) further provides that "[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, rule 3.1348(a). Plaintiff has not shown that he acted with substantial justification or that other circumstances make the imposition of the sanction unjust. The court must therefore award sanctions, although it will reduce the amount requested to take into account the fact that all three motions were nearly identical, there was no need to review any oppositions or prepare any replies, and that the court will hold only one hearing for all three motions. Defendant shall give notice of this ruling to both of Plaintiff's mailing addresses with a courtesy copy by electronic mail.
9	Martinez vs. County of Orange 30-2021-01208196	<u>Motion for Summary Judgment and/or Adjudication</u> Defendants County of Orange's, Deputy J. McAuliffe's, Deputy M. Sulham's, Deputy A. Copeland's, Deputy F. Deleo's, Deputy S. Orellana's, and Deputy M. Odom's Motion for Summary Judgment is DENIED. Defendants County of Orange's, Deputy J. McAuliffe's, Deputy M. Sulham's, Deputy A. Copeland's, Deputy F. Deleo's, Deputy S. Orellana's, and Deputy M. Odom's Motion for, in the Alternative Summary Adjudication is GRANTED as to the 7th Cause of Action and DENIED as to the remainder of the causes of action.

		Plaintiff Ricardo Martinez's Objections to Defendants' Evidence are SUSTAINED as to evidentiary objection number 17, and SUSTAINED to the extent statements are used for the truth of the matter asserted and OVERRULED to the extent statements are used as the basis for the expert witness' opinion as to evidentiary objection numbers 18-20. The remainder of the evidentiary objections are OVERRULED. Defendants County of Orange's, Deputy J. McAuliffe's, Deputy M. Sulham's, Deputy A. Copeland's, Deputy F. Deleo's, Deputy S. Orellana's, and Deputy M. Odom's Objections to Plaintiff's Evidence are SUSTAINED to the extent statements are used for the truth of the matter asserted and OVERRULED to the extent statements are used as the basis for the expert witness' opinion as to evidentiary objection numbers 2-6. The remainder of the evidentiary objections are OVERRULED. Defendants County of Orange, Deputy J. McAuliffe, Deputy M. Sulham, Deputy A. Copeland, Deputy F. Deleo, Deputy S. Orellana, and Deputy M. Odom move for summary judgment on the Complaint filed by Plaintiff Ricardo Martinez. In the alternative, Defendants move for summary adjudication as to the 1st through 8th Cause of Action of the Complaint based upon 16 separately enumerated issues. <u>Standard for Summary Judgment or Summary Adjudication</u> "Summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c).) "A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, . . . or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. (Code Civ. Proc., § 437c, subd.
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		(f)(1).) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact" (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (<i>Id.</i> at 851.) A defendant moving for summary judgment satisfies the initial burden by submitting undisputed evidence "showing that a cause of action has no merit [because] one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc. § 437c, subd. (p)(2); <i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at pp. 850-51.) However, "[t]he defendant <i>must</i> indeed present evidence." (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 855, italics original.) In addition, if a plaintiff has pleaded several theories, the defendant has the burden of demonstrating there are no material facts requiring trial on any of them. (<i>Carlsen v. Koivumaki</i> (2014) 227 Cal.App.4th 879, 889.) If a defendant fails to meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (<i>Binder v. Aetna Life Ins. Co.</i> (1999) 75 Cal.App.4th 832, 840.) If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 855; <i>Villacres v. ABM Industries, Inc.</i> (2010) 189 Cal.App.4th 562, 575.) The nonmoving party must present substantial evidence in order to avoid summary judgment. (<i>Sangster v. Paetkau</i> (1998) 68 Cal.App.4th 151, 163.) "In some instances . . . , 'evidence may be so lacking in probative value that it fails to raise any triable issue.'" (<i>Whitmire v. Ingersoll-Rand Co.</i> (2010) 184 Cal.App.4th 1078, 1083-1084, quoting <i>Advanced Micro Devices, Inc. v. Great American Surplus Lines Ins. Co.</i> (1988) 199 Cal.App.3d 791, 795.)
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		Nonetheless, in ruling on a motion for summary judgment or summary adjudication, "the court must 'consider all of the evidence' and 'all' of the 'inferences' reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party." (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 843, citations omitted.) Courts "'construe the moving party's affidavits strictly, construe the opponent's affidavits liberally, and resolve doubts about the propriety of granting the motion in favor of the party opposing it.'" (<i>Unilab Corp. v. Angeles-IPA</i> (2016) 244 Cal.App.4th 622, 636, quoting <i>Seo v. All-Makes Overhead Doors</i> (2002) 97 Cal.App.4th 1193, 1201–1202.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment or adjudication, and all evidentiary conflicts are to be resolved against the moving party. (<i>McCabe v. American Honda Motor Corp.</i> (2002) 100 Cal.App.4th 1111, 1119.) "The court . . . does not resolve issues of fact. The court seeks to find contradictions in the evidence, or inferences reasonably deducible from the evidence, which raise a triable issue of material fact." (<i>Johnson v. United Cerebral Palsy/Spastic Children's Foundation of Los Angeles and Ventura Counties</i> (2009) 173 Cal.App.4th 740, 754, citation omitted.) "[S]ummary judgment cannot be granted when the facts are susceptible [of] more than one reasonable inference . . ." (<i>Rosas v. BASF Corp.</i> (2015) 236 Cal.App.4th 1378, 1392.) <u>1st Cause of Action (False Arrest) – Issues 1</u> "[T]he elements of a tortious claim of false imprisonment are: (1) the nonconsensual, intentional confinement of a person, (2) without lawful privilege, and (3) for an appreciable period of time, however brief." (<i>Jon Davler, Inc. v. Arch Insurance Company</i> (2014) 229 Cal.App.4th 1025, 1034). Defendants Deputy J. McAuliffe, Deputy M. Sulham, Deputy A. Copeland, Deputy F. Deleo, Deputy S. Orellana, and Deputy M. Odom (collectively Deputy Defendants) contend they are entitled to summary adjudication as to this cause of action because the arrest was warranted under
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		Penal Code section 69 and/or Penal Code section 148. Penal Code section 69 states: (a) Every person who attempts, by means of any threat or violence, to deter or prevent an executive officer from performing any duty imposed upon the officer by law, or who knowingly resists, by the use of force or violence, the officer, in the performance of his or her duty, is punishable by a fine not exceeding ten thousand dollars (\$10,000), or by imprisonment pursuant to subdivision (h) of Section 1170, or in a county jail not exceeding one year, or by both such fine and imprisonment. (Pen. Code, § 69.) In addition, Penal Code § 148 states that a person can be placed under arrest if they “willfully resist, delay, or obstruct any police officer, peace officer, or an emergency medical technician . . . in the discharge or attempt to discharge any duty of his or her office or employment.” (Pen. Code § 148(a)(1).) Here, there is a triable issue of fact as to whether Plaintiff willfully resisted or obstructed the Deputy Defendants in the discharge of their duty, and thus, whether Sections 69 or 148 apply in this case. Defendants contend the arrest was warranted because Plaintiff resisted and actively pulled away from the deputies. (Def.s’ Separate Statement of Undisputed Material Facts in Supp. of Mot. for Summ. J. (Separate Statement), Undisputed Material Facts Numbers 7, 9, 11-13.) However, in his Complaint, his deposition testimony, and written discovery responses, Plaintiff disputes this. (See Pltf.’s Responses to Def.s’ Separate Statement (Responsive Statement, Responses Numbers 7, 9, 11-13; Pltf.’s Compendium of Evid. in Opp’n to Def.s’ Mot for Summ. J (Pltf.’s Evid.), Exh. 1 at p. 39:25-40:7, Exh. 4.) Defendants have submitted the surveillance video of the interactions between Plaintiff and Deputy
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		Defendants on the day in question, but it does not conclusively establish, as a matter of law, that Deputy Defendants' version of events – rather than Plaintiff's – is true. The court must deny summary adjudication as to the 1st Cause of Action and Issue 1. <u>2nd Cause of Action (Negligent Use of Nondeadly Force), 3rd Cause of Action (Excessive Use of Force — Unreasonable Arrest), 4th Cause of Action (Battery By A Police Officer) – Issues 2-4</u> The Deputy Defendants contend they are entitled to summary adjudication on the 2nd, 3rd, and 4th Causes of Action because their use of force was objectively reasonable under the circumstances. The Fourth Amendment of the United States Constitution applies an objective reasonableness standard to claims of excessive force. (See <i>Scott v. Harris</i> (2007) 550 U.S. 372, 381.) In addition, Penal Code section 835 provides: An arrest is made by an actual restraint of the person, or by submission to the custody of an officer. The person arrested may be subjected to such restraint as is reasonable for his arrest and detention. (Pen. Code, § 835.) "Because the reasonableness standard nearly always requires a jury to sift through disputed factual contentions, and to draw inferences therefrom, . . . summary judgment or judgment as a matter of law in excessive force cases should be granted sparingly." (<i>Torres v. City of Madera</i> (9th Cir. 2011) 648 F.3d 1119, 1125.) "For the purposes of summary judgment, even in a qualified immunity case, we must assume the nonmoving party's version of the facts to be correct." (<i>Liston v. County of Riverside</i> (9th Cir. 1997) 120 F.3d 965, 977.) The facts discussed above show that there is a triable issue of fact as to whether Defendants' use of force was objectively reasonable. Defendants contend that the type and amount of force was minimal, but Plaintiff provides evidence that he sustained severe injuries resulting from the force applied by Defendants. (See Responsive Statement, Response Number 17.) Such evidence
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		could support a determination by a reasonable jury that the Deputy Defendants used excessive force. The court must deny summary adjudication as to these causes of action and these issues. <u>5th Cause of Action (Violation of the Tom Bane Civil Rights Act (Civ. Code § 52.1)) and 56th Cause of Action (Violation of the Ralph Civil Rights Act of 1976 (Civ. Code § 51.7)) – Issues 5-6</u> With respect to the 5th Cause of Action and 6th Cause of Action, Defendants contend they are entitled to summary adjudication because Plaintiff’s civil rights were not violated; Deputy Defendants did not use threats, intimidation, coercion, or violent acts; and Deputy Defendants use of force was objectively reasonable under the circumstances. As the Court of Appeal has explained: The Bane Act makes it unlawful for any person to interfere by threat, intimidation, or coercion, or attempt to interfere by threats, intimidation, or coercion, with the exercise or enjoyment by any individual secured by the Constitution or laws of California. [Citation.] “ `The essence of a Bane Act claim is that the defendant, by the specified improper means (i.e., ‘threats, intimidation or coercion’), tried to or did prevent the plaintiff from doing something he or she had the right to do under the law or to force the plaintiff to do something that he or she was not required to do under the law.” ’ ” [Citation.] An officer cannot claim qualified immunity under the Bane Act. [Citation.] The Bane Act does not require that “the offending ‘threat, intimidation or coercion’ be ‘independent’ from the constitutional violation alleged.” [Citation.] Rather, where an unlawful arrest is properly pleaded and proved, “the egregiousness required by [Civ. Code] [s]ection 52.1 is tested by whether the circumstances indicate the arresting officer had a specific intent to violate the arrestee’s right to freedom from unreasonable seizure, not by whether the evidence shows something beyond the
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		coercion 'inherent' in the wrongful detention." [Citation.] There are two requirements for a finding of specific intent. [Citation.] First, the court must make the legal determination of whether the " "right at issue clearly delineated and plainly applicable under the circumstances of the case." ' ' ' [Citation.] Second, if the first condition is answered in the affirmative, " "the jury must make the second, factual, determination. Did the defendant commit the act in question with the particular purpose of depriving the citizen victim of his enjoyment of the interests protected by that ... right? If both requirements are met, even if the defendant did not in fact recognize the [unlawfulness] of his act, he will be adjudged as a matter of law to have acted [with the requisite specific intent]—i.e., 'in reckless disregard of constitutional [or statutory] prohibitions or guarantees.' " ' ' ' [Citation.] (<i>Murchison v. County of Tehama</i> (2021) 69 Cal.App.5th 867, 896.) In <i>Murchison v. County of Tehama</i>, the Court of Appeal found that "the rights at issue are plaintiff's constitutional rights to be free from unlawful search and excessive force." (<i>Murchison v. County of Tehama, supra</i>, 69 Cal.App.5th at p. 897.) The Court of Appeal then concluded that the use of excessive force constituted an unreasonable seizure under article I, section 13 of the California Constitution, so that the plaintiff in that case had properly alleged the violation of his civil rights and a violation of the Bane Act. (<i>Ibid.</i>) The Court of Appeal also has explained that: The Ralph Act is an antidiscrimination scheme. . . . Section 51.7, subdivision (a), states that everyone in California has "the right to be free from any violence, or intimidation by threat of violence, committed against their persons or property because of political affiliation, or on account of any characteristic listed or defined in subdivision (b) or (e) of Section 51, or position in a labor dispute, or because another person perceives them to
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		have one or more of those characteristics. The identification in this subdivision of particular bases of discrimination is illustrative rather than restrictive.” (<i>Gabrielle A. v. County of Orange</i> (2017) 10 Cal.App.5th 1268, 1290.) In order to make out a claim under the Ralph Act, “a plaintiff must establish the defendant threatened or committed violent acts against the plaintiff or their property, and a motivating reason for doing so was a prohibited discriminatory motive, or that the defendant aided, incited, or conspired in the denial of a protected right.” (<i>Id.</i> at p. 1291.) Thus, under <i>Murchison v. County of Tehama</i> and <i>Gabrielle A. v. County of Orange</i>, Plaintiff’s allegations that the Deputy Defendants used excessive force are sufficient as a matter of law to make out claims that Defendants violated Plaintiff’s civil rights and violated the Bane and Ralph Acts. In addition, for the reasons stated above, whether the Deputy Defendants actually used excessive force or threatened or committed violent acts against Plaintiff is a disputed issue of material fact that must be decided at trial and cannot be decided on summary judgment. Finally, Plaintiff testified that he is Hispanic and the other man involved in the altercation was Caucasian. (Pltf.’s Evid., Exh. 1 at 39:15-19.) Plaintiff further testified that the Deputy Defendants “did not even touch him [the other man]. Nothing. But they did everything to me.” (<i>Ibid.</i>) This is sufficient to create a triable issue of fact as to whether Deputy Defendants took improper actions against Plaintiff because he is a member of class protected by the Ralph Act. The court is required deny summary adjudication on the 5th Cause of Action and 6th Cause of Action and these issues. <u>7th Cause of Action (Intentional Infliction of Emotional Distress) and 8th Cause of Action (Negligent Infliction of Emotional Distress) – Issues 7-8</u>
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		The elements of a cause of action for Intentional Infliction of Emotional Distress are: "(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff suffered severe emotional distress; and (3) the defendant's extreme and outrageous conduct was the actual and proximate cause of the severe emotional distress." (<i>Crouch v. Trinity Christian Center of Santa Ana, Inc.</i> (2019) 39 Cal.App.5th 995, 1007, citation omitted.) "A defendant's conduct is considered to be outrageous if it is so extreme as to exceed all bounds of that usually tolerated in a civilized community." (<i>Ibid.</i>, citations omitted.) In addition, "the defendant's conduct must be 'intended to inflict injury or engaged in with the realization that injury will result.'" (<i>Hughes v. Pair</i> (2009) 46 Cal.4th 1035, 1051, quoting <i>Potter v. Firestone Tire & Rubber Co.</i> (1993) 6 Cal.4th 965, 1001.) A cause of action for negligent infliction of emotional distress is not an independent tort. (<i>Christensen v. Superior Court</i> (1991) 54 Cal.3d 868.) Rather, it is "a variation of the tort of negligence [and the] traditional elements of duty, breach of duty, causation and damages apply." (<i>Slaughter vs. Legal Process & Courier Serv.</i> (1984) 162 Cal.App.3d 1236, 1249.) To establish negligent infliction of emotional distress, a plaintiff must show (1) that the defendant was negligent; (2) that the plaintiff suffered serious emotional distress; and (3) that the defendant's negligence was a substantial factor in causing the plaintiff's emotional distress. (See <i>ibid.</i>; <i>Kelly v. General Telephone Co.</i> (1982) 136 Cal.App.3d 278, 286-287.) Defendants argue that summary adjudication should be granted as to the 7th and 8th Causes of Action because there is no triable issue of material fact that the Deputy Defendants had no intention to and were not negligent in inflicting emotional harm on Plaintiff, that their conduct was not outrageous, and that their use of force was objectively reasonable. Defendants have pointed to evidence that Deputy Defendants were acting consistently with their training and state and departmental use of force policies. (See Separate Statement, Undisputed Material Facts Numbers 8, 18-21.) Although this
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		does not prove that Deputy Defendants were not negligent or were not using excessive force, it is evidence that the Deputy Defendants did not act in a manner intended to cause harm to Plaintiff or with the realization that injury would result to Plaintiff. It also is evidence that Deputy Defendants' conduct was not so extreme as to exceed all bounds of what is usually tolerated in civilized society. The burden is then shifted to Plaintiff to show a material issue of disputed fact. However, Plaintiff is unable to point to any evidence that Deputy Defendants acted intentionally or with knowledge that injury would result to Plaintiff. Nor does Plaintiff submit any argument or evidence that Deputy Defendants' conduct was so extreme and outrageous as to be beyond the bounds of civilized society. Plaintiff only points to evidence that Deputy Defendants misapplied their training and applicable policies, but that is only evidence of negligence, not intentional or outrageous conduct. (See, e.g., Responsive Statement, Response Number 8 ["Defendants attempt to imply that use of the rear wrist locks at that time and under these circumstances was POST approved. That is clearly disputed. At the time the Deputy Defendants used rear wrist locks on Plaintiff, it was not necessary under the totality of the circumstances."].) There is, however, no need to show intentional or outrageous conduct with respect to the 8th Cause of Action. Plaintiff need only show that Deputy Defendants conduct was negligent. For the reasons explained above, Plaintiff has provided evidence to create a triable issue of fact as to whether Deputy Defendants used force that was not reasonable or appropriate under the circumstances. (See, e.g., Responsive Statement, Response Number 12.) The court must grant summary adjudication as to the 7th Cause of Action and deny as to the 8th Cause of Action. <u>Claims Against Defendant County of Orange – Issues 9-16</u> Under the California Tort Claims Act, public employees are liable for injuries caused by their
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		acts and omissions to the same extent as private persons. (Gov't Code, § 820, subd. (a).) However, public agencies and organizations are "liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would . . . have given rise to a cause of action against that employee," unless "the employee is immune from liability." (Gov't Code, § 815.2; see <i>Zelig v. County of Los Angeles</i> (2002) 27 Cal.4th 1112, 1128 ["Vicarious liability is a primary basis for liability on the part of a public entity, and flows from the responsibility of such an entity for the acts of its employees under the principle of respondeat superior."].) Here, Defendant County of Orange's liability arises if its employees, the Deputy Defendants, only to the extent that the Deputy Defendants are liable and their improper actions were taken within the scope of their employment. There is no argument that the conduct at issue here was taken within the scope of Deputy Defendants' employment with Defendant County of Orange. Thus, because summary adjudication cannot be granted as to the individual Deputy Defendants as to the 1st through 6th and 8th Causes of Action, summary adjudication cannot be granted as to the Defendant County of Orange as to the claims. However, because the court has granted summary adjudication to the Deputy Defendants as to the 7th Cause of Action, the court must grant summary adjudication to Defendant County of Orange as to the 7th Cause of Action. Plaintiff shall give notice of this ruling.
10	Sentinel Restaurant and Hospitality Group, LLC vs. My OC Villas, LLC 30-2020-01176078	<u>ADR Review Hearing</u> In light of the court's orders regarding Defendant Amy Hsiao's Motion to Dismiss for Failure to Bring to Trial and the flings presented by the parties regarding the status of the arbitration proceedings, the court takes this matter OFF CALENDAR.

		<u>Motion to Dismiss</u> Defendant Amy Hsiao’s Motion to Dismiss for Failure to Bring to Trial is GRANTED. The First Amended Complaint in its entirety is DISMISSED without prejudice. Defendant Amy Hsiao (Defendant Hsiao) moves to dismiss this action due to Plaintiffs Sentinel Restaurant and Hospitality Group, LLC’s and Sentinel Restaurant Group-Hendrix, LLC’s failure to prosecute. <u>Dismissal for Failure to Prosecute</u> Civil Procedure Code section 583.310 states that “[a]n action shall be brought to trial within five years after the action is commenced against the defendant.” (Code Civ. Proc., § 583.310.) Civil Procedure Code section 583.360 mandates that “[a]n action shall be dismissed by the court on its own motion or on motion of the defendant, after notice to the parties, if the action is not brought to trial within the time prescribed in this article.” (Code Civ. Proc., § 583.360, subd. (a).) Defendant Hsiao cites to Sections 583.310 and 583.360. However, this action was filed on Decemebr 23, 2020. (See ROA #1.) Thus, less than 3 years have passed since the filing of this action and dismissal is not permitted under Sections 583.301 and 583.360. However, Defendant Hsiao also relies upon Civil Procedure Code section 583.410. That provision provides that “[t]he court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case.” (Code Civ. Proc., § 583.410, subd. (a).) Thus, “sections 583.410 and 583.420 grant trial courts discretion to dismiss an action for failure to bring it to trial within two years.” (<i>Seto v. Szeto</i> (2022) 86 Cal.App.5th 76, 101.) This is confirmed by California Rules of Court Rule 3.1340, which states that “[t]he court on its own motion or on motion of the defendant may dismiss an action under Code of Civil Procedure sections 583.410-583.430 for delay in prosecution if the action has not been brought to trial or conditionally settled
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		within two years after the action was commenced against the defendant.” (Cal. Rules of Ct. Rule 3.1340(a).) On June 2, 2021, the court signed the parties’ proposed Order Re: Joint Stipulation for Arbitration and to Stay Action. (See ROA #49.) On March 27, 2023, the arbitrator dismissed all of Plaintiffs’ claims in arbitration for failure to prosecute. (Decl. of Charles M. Farano in Supp. of Mot. to Dismiss, Exh. B at p. 4.) The arbitrator noted that despite be in in arbtiration since July 2021, by March 2023, Plaintiffs were without lead counsel and not prepared to oppose Defendants’ motion to dismiss in arbitration or to proceed with the arbitraiton hearing. (<i>Id.</i> at pp. 2-3.) The arbitrator thus dismissed the claims in arbitration for failure to prosecute pursuant Civil Procedure Code section 583.410 and California Rules of Court rule 3.1340. (<i>Id.</i> at pp. 3-4.) Plaintiffs have also failed to prosecute this action in this court. Plaintiffs’ counsel have filed a Motion to Be Relieved As Counsel because “[t]here has been a breakdown in communications between the clients and the attorneys, and the clients’ conduct has made it unreasonably difficult for the attorneys to effectively carry out the remainder of this representation.” (ROA #86, #88.) (fn.1) (fn.1) The court was constrained to deny this motion only because this action was stayed at the time. The court has since lifted the stay in light of the arbitrator’s dismissal of the claims in arbitration. (See ROA #106.) Further, Plaintiffs have not filed an opposition to this motion and have waived arguments against dismissal. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see also <i>Wright v. Fireman’s Fund Ins. Companies</i> (1992) 11 Cal.App.4th 998, 1011 [“it is clear that a defendant may waive the right to raise an issue on appeal by failing to raise the issue in the pleadings or in opposition to a . . . motion”].) <u>Dismissal to Confirm Arbitrator’s Decision</u>
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		In addition, the Court of Appeal has held that an arbitrator's decision to dismiss claims in arbitration pursuant to Civil Procedure Code section 583 for failure to bring an action to trial within 5 years was the equivalent of an award in defendant's favor that was binding on the Superior Court. (See <i>Young v. Ross-Loos Medical Group, Inc.</i> (1982) 135 Cal.App.3d 669, 672-673.) Thus, such an award by the arbitrator had to be enforced by the Superior Court by dismissing the underlying civil action in accordance with Section 583, unless there was a basis for vacating the award. (See <i>id.</i> at pp. 673-674; see also <i>Burgess v. Kaiser Foundation Hospitals</i> (1993) 16 Cal.App.4th 1077, 1081-1082 [same with respect to Civil Procedure Code section 583.310].) The court can discern no basis for differentiating between an arbitrator's dismissal pursuant to Civil Procedure Code sections 583.310 and 583.410. Both are dismissals based upon statutory provisions for plaintiff's delay in bringing the matter to trial. In addition, Plaintiffs have presented no basis to vacate the arbitrator's award. The court therefore must enforce that award by dismissing all of Plaintiffs' claims, as the arbitrator did. Defendant Hsiao shall give notice of this ruling.
11	Stein vs. LAD Mission Viejo-JLR, Inc. 30-2023-01300906	<u>Motion to Compel Discovery</u> Plaintiff Jennifer Stein's Motion to Compel Further Responses to Request for Production Set One from Defendant Jaguar Land Rover North America, LLC is GRANTED in part and DENIED in part. Defendant Jaguar Land Rover North America, LLC is ORDERED to serve verifications to its responses to Plaintiff Jennifer Stein's Request for Production Set One within 30 days of service of the notice of ruling. Defendant Jaguar Land Rover North America, LLC is ORDERED to serve full, complete, and verified responses to Plaintiff Jennifer Stein's Request for Production Set One, Requests Numbers 33-40 and all responsive documents to Requests Numbers 33-40 within 30 days of service of the notice of ruling.

		Defendant Jaguar Land Rover North America, LLC is ORDERED to pay to Plaintiff Jennifer Stein sanctions in the amount of \$2,411.25 (4.75 hours x \$495 per hour in reasonable attorney's fees and \$60 in motion filing fees) within 30 days of service of the notice of ruling. Plaintiff Jennifer Stein moves to compel further responses to Plaintiff's Request for Production Set One, Requests Numbers 18 and 33-41 from Defendant Jaguar Land Rover North America (Defendant Manufacturer). <u>Standard to Compel Further Responses to Request for Production</u> A party may move for an order compelling further responses to requests for the production of documents on the grounds that: (1) a statement of compliance with the request is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; or (3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).) In addition, "[i]f a party filing a response to a demand for inspection, copying, testing, or sampling . . . thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party's statement of compliance, the demanding party may move for an order compelling compliance." (Code Civ. Proc., § 2031.320, subd. (a).) As a general matter, parties are entitled to discovery of "any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (Civil Proc. Code, § 2017.010.) Further, the Civil Discovery Act was intended to provide the right to broad discovery and must be liberally construed in favor of allowing discovery. (<i>See Sinaiko Healthcare Consulting, Inc. vs. Pacific Healthcare Consultations</i> (2007) 148 Cal.App.4th 390, 402.) Thus, any doubts concerning the permissibility of discovery are generally resolved in favor of allowing discovery. (<i>See Advanced Modular</i>
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		<i>Sputtering, Inc. v. Superior Court</i> (2005) 132 Cal.App.4th 826, 837; <i>Glenfed Development Corp. v. Superior Court</i> (1997) 53 Cal.App.4th 1113, 1119.) For example, doubts as to the relevance of discovery should be resolved in favor of the requesting party. (See <i>Mercury Interactive Corp. v. Klein</i> (2007) 158 Cal.App.4th 60, 98.) This is because the purpose of statutes establishing the expansive scope of discovery is to eliminate surprise at trial, to educate parties concerning their claims and defenses so as to encourage settlements and to expedite and facilitate trial, and to minimize opportunities for fabrication and forgetfulness. (<i>Puerto v. Superior Court</i> (2008) 158 Cal.App.4th 1242, 1249.) <u>Unverified Responses</u> It is well-established that “an unverified response is tantamount to no response at all.” (<i>Melendrez v. Superior Court</i> (2013) 215 Cal.App.4th 1343, 1348; see also <i>Appleton v. Superior Court</i> (1988) 206 Cal.App.3d 632, 636 [“Unsworn responses are tantamount to no responses at all.”]; <i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489 [“As the court noted, the responses finally given were legally invalid, because they were unverified.”].) Here, Plaintiff has presented evidence that Defendant Manufacturer’s May 4, 2023 responses to Plaintiff’s Request for Production Set One was not accompanied by verifications. (Declaration of Jeffrey Mukai in Supp. of Mot. to Compel Further Responses, ¶ 8.) Defendant Manufacturer has neither denied this nor presented evidence that it is untrue. Thus, at a minimum, Defendant Manufacturer’s responses were not code compliant because they lacked verifications and the court must order Defendant Manufacturer to serve verified responses. <u>Request for Production Number 18</u> Request for Production Number 18 seeks “[t]he operative Franchise Agreement, if any, on the date of sale of the SUBJECT VEHICLE between [Defendant Manufacturer] and the dealership that sold the SUBJECT VEHICLE to Plaintiff.”
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		"Although the scope of civil discovery is broad, it is not limitless." (<i>Calcor Space Facility, Inc. v. Superior Court</i> (1997) 53 Cal.App.4th 216, 223.) A party seeking to compel further responses to requests for production of documents is still required to "set forth specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc., § 2031.310, subd. (b)(1).) Here, Plaintiff has not pointed to any good cause justifying production of Defendant Manufacturer's franchise agreement with the dealership that sold the subject vehicle to Plaintiff. Plaintiff does allege that Defendant Jaguar Mission Viejo/Land Rover Mission Viejo (Defendant Jaguar Mission Viejo), failed "to properly store, prepare and repair . . . the Subject Vehicle in accordance with industry standards," and that this failure was the proximate cause of Plaintiff's damages. (See Compl., ¶¶ 42-43). However, there are no allegations in the Complaint and no evidence presented that Defendant Jaguar Mission Viejo sold the subject vehicle to Plaintiff. Even if Defendant Jaguar Mission Viejo sold the subject vehicle to Plaintiff, no showing has been made that the franchise agreement between Defendant Manufacturer and Defendant Jaguar Mission Viejo has any relevance to the claims at issue here. <u>Request for Production Numbers 33-40</u> Request for Production Numbers 33-36 seek documents pertaining to technical service bulletins, recalls, field service actions, and special service messages for vehicles of the same year, make and model as the subject vehicle. Defendant Manufacturer produced a list of the documents that might be responsive to the requests, but failed to produce the documents themselves. Defendant Manufacturer also directed Plaintiff to a website where she could obtain the documents for a fee. Defendant Manufacturer's responses do not comply with Civil Procedure Code section 2031.220, which requires the responding party to produce all responsive documents "that are in the possession, custody, or control of that party
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		" (Code Civ. Proc., § 2031.220; see <i>Roche v. Hyde</i> (2020) 51 Cal.App.5th 757, 813 ["The idea that Ram's Gate could avoid producing the records of a predecessor corporation whose files it controlled was not only frivolous under the governing "possession, custody, or control" standard [citations], but on this record was deceptive."].) Request for Production Numbers 37-40 seek documents pertaining to OBDII codes, vehicle symptom codes, vehicle component repair codes, and customer complaint codes. In its responses to these requests, Defendant Manufacturer also advised Plaintiff that she could obtain documents pertaining to these codes from a website. For the reasons stated above, this response was not code-compliant and Defendant Manufacturer must produce responsive documents in its possession, custody, or control. For example, in a letter dated August 18, 2023, Defendant Manufacturer provided an explanation on interpreting the "Customer Concern Code" and "Condition Code." This suggests Defendant Manufacturer is in possession, custody or control of documents that would aid Plaintiff in interpreting these codes. <u>Request for Production Number 41</u> Request for Production Number 41 seeks "DOCUMENTS sufficient to show all labor operation codes provided by [Defendant Manufacturer] to YOUR authorized dealerships from 2022 to present." In an August 18, 2023 letter, defense counsel advised Plaintiff that she would confer with her client to confirm whether any responsive documents existed. (See Decl. of Liana A. Wong in Supp. of Def. Manufacturer's Opp'n to Pltf.'s Mot. to Compel Further Responses, Exh. A.) Plaintiff did not wait for defense counsel to provide further information or even request that Defendant Manufacturer provide such information. Plaintiff instead filed its Motion to Compel the next court day. A motion to compel further responses must include a meet and confer declaration consistent
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		with Civil Procedure Code section 2016.040. (See Code Civ. Proc., § 2031.310, subd. (b)(2).) Civil Procedure Code section 2016.040 requires that the moving party have made "a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., § 2016.040.) The Civil Procedure Code "requires that there be a serious effort at negotiation and informal resolution" and "that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (<i>Townsend v. Superior Court</i> (1998) 61 Cal.App.4th 1431, 1438-1439.) With respect to Request for Production Number 41, Plaintiff failed to meet the requirements of Sections 2016.040 and 2031.310(b)(2). The court therefore will deny this request. <u>Sanctions</u> The Civil Procedure Code requires the court to impose monetary sanctions against a party, person, or attorney who unsuccessfully makes or opposes a motion to compel "unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.300, subd. (c).) If the results of the motion to compel are mixed, the trial court has the discretion to apportion sanctions or award no sanctions on any terms as may be just. (See <i>Mattco Valley Forge v. Arthur Young & Co.</i> (1990) 223 Cal.App.3d 1429, 1437.) Here, Plaintiff was successful with respect to the majority of matters in her motion – including the lack of verifications and further responses to Requests for Production Numbers 33-40. As to these issues, Defendant Manufacturer has provided no substantial justification for its opposition nor did it point to any circumstances that make the imposition of the sanction unjust. However, Defendant Manufacturer was successful in opposing the motion with respect to Requests for Production Numbers 18 and 41. The court therefore will apportion the sanctions for the mixed results. Plaintiff shall give notice of this ruling.
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12	Vorrath vs. Guntle 30-2022-01284979	<u>Motion to Be Relieved as Counsel</u> John F. Ramey's and RAMEY LAW, P.C.'s Motion to Be Relieved as Counsel is GRANTED. The court shall sign the proposed Order Granting Attorney's Motion to Be Relieved as Counsel – Civil (Form MC-053) submitted by John F. Ramey and RAMEY LAW, P.C. (See ROA #37.) John F. Ramey and RAMEY LAW, P.C. move to relieved as counsel for Plaintiff Sylvia Vorrath. <u>Prior Court Orders</u> On August 28, 2023, the court determined that John F. Ramey and RAMEY LAW, P.C. had presented sufficient reasons to be relieved as counsel and that Plaintiff would not be unduly prejudiced. However, the proof of service for the Motion to Be Relieved as Counsel was deficient. The court therefore ordered that John F. Ramey and RAMEY LAW, P.C. were to file with the court, within 7 days of August 28, 2023: 1) a proof of service indicating all addresses at which Plaintiff was served with the papers for John F. Ramey's and RAMEY LAW, P.C.'s Motion to Be Relieved as Counsel, 2) a declaration stating all facts showing that the service address for Plaintiff Sylvia Vorrath is her last known residence or business address and that John F. Ramey and RAMEY LAW, P.C. have been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the Motion to Be Relieved as Counsel, and 3) a proof of service indicating that the above declaration and this ruling have been served upon the Plaintiff at her last known residence or business address. John F. Ramey and RAMEY LAW, P.C. have complied with the court's orders. (See ROA #83.) Further, Plaintiff has not filed an opposition to the instant motion. Thus, the court will grant the motion.

		John F. Ramey and RAMEY LAW, P.C. shall give notice of this ruling.
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